

Ujala Kumar @ Ujala Singh v. State of Bihar & Ors.

High Court of Patna · Single Judge · 27 August 2014 · 2014 SCC OnLine Pat 2552 · Civil Writ Jurisdiction Case No. 8548 of 2014
 · Writ petition allowed; denial of connection held unjustified; the Executive Engineer/competent authority directed to provide a new connection to the petitioner within four weeks

HEADNOTE

Under Clause 4.15(vi) of the Bihar Electricity Supply Code, 2007 a person is liable to ensure payment of a tenant's electricity arrears only in circumstances where the electricity connection to the premises was given with the consent of the house-owner. That consent is the precondition to liability; and a mere presence of the owner's signature on the tenant/lease-holder's application for a connection cannot signify consent unless the consent is expressed in such terms. Where there is nothing on record to show that the connection was provided with the owner's consent, the denial of a fresh connection to the applicant on account of a previous lease-holder's outstanding dues is unjustified, and the licensee must provide the connection.

HOLDING-UNITS

HOLDING-UNIT · BIHAR-2007::4.15

Owner's consent as precondition to liability for a lease-holder's arrears; mere signature on the application is not consent

QUESTION

Can a fresh connection be denied under Clause 4.15(vi) on account of a previous lease-holder's arrears, where the only material suggesting the owner's consent is his signature on the lease-holder's application?

HOLDING

No. Clause 4.15(vi) makes a person liable for a lease-holder's arrears only where the connection was given with the consent of the house-owner. A mere presence of the owner's signature on the lease-holder's application cannot signify consent unless it is expressed in such terms. There being nothing on record to show the connection was given with the owner's consent, the denial of a fresh connection to the applicant was unjustified, and the authority was directed to provide the connection within four weeks. ¶ (pp. 48-49 of the order)

LIMITING FACTS

Petitioner sought a new connection; it was denied only because a previous lease-holder had outstanding dues; the licensee relied on the petitioner's signature on the lease-holder's connection application as evidence of consent.

PRINCIPLE TAGS

owner-consent-precondition-clause-4.15vi-bihar-code Clause 4.15(vi) fastens liability for a lease-holder's arrears on a person only where the connection was given with the house-owner's consent. ¶ (pp. 48-49)

mere-signature-on-application-is-not-consent A mere signature of the owner on the tenant/lease-holder's connection application does not amount to consent unless expressed in such terms. ¶ (p. 49)